

23STCV09114 23STCV09114

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MOTION TO ENFORCE SETTLEMENT

The Court tenders the following

tentative decision in the matter Benjamin Moreno v. Pacific Reproductive Medical Center Inc., et al., Los Angeles County Superior Court case number 23STCV09114, set for hearing on July 27, 2026. Pacific Reproductive Medical Center, Inc. and Rifaat Salem (collectively, Defendants) move for an order enforcing a PAGA settlement agreement between them and Benjamin Moreno (Plaintiff) pursuant to Code of Civil Procedure section 664.6. The motion is denied.

A.

Procedural

History

Plaintiff filed the present action against Defendants on April 24, 2023. On April 11, 2025, the parties signed a settlement agreement. The Court denied Plaintiff's motion for approval of the settlement agreement on July 17, 2025. Plaintiff did not cooperate with Defendants in attempting to reach an alternative settlement between then and the present hearing. (Davila Decl. ¶¶ 6–7.) Defendants filed the present motion to enforce the PAGA agreement on June 3, 2026. On June 30, 2026, the Court ordered the parties “to submit a declaration by July 17, 2026 describing (1) the efforts made to fulfill this cooperation obligation and (2) their respective positions on how the agreement may be amended to address the Court's concerns.” Specifically, the Court had previously taken issue with the following: “(1) the definition of ‘aggrieved employees’ was used inconsistently in the settlement documentation and (2) plaintiff asked for an additional distribution from the settlement fund to be paid to lawyers who were not

involved in the case, and the Court needed to understand why that was justified.”

Defendants represent that the parties conferred after the June 30 hearing. (Davila Decl. ¶¶ 4–5.) After those discussions, Defendants contend that the proposed notice to aggrieved employees can be altered to match the definition within the PAGA settlement agreement, resolving the Court’s first concern with the agreement language. (Id. ¶¶ 7–9.) Defendants additionally take no position on whether the fee request for Plaintiff’s counsel within the PAGA settlement should be approved but notes that counsel could submit a declaration substantiating its work on this matter for the sake of obtaining approval. (Id. ¶¶ 10–12.) However, Plaintiff’s counsel has refused to do so. (Id. ¶ 13.)

Plaintiff simply maintains that he has no obligation to cooperate with Defendants under Code of Civil Procedure 664.6 because no judgment was ever entered by the Court based on an approved settlement. (Gutierrez Decl. ¶ 4–7.) Additionally, Plaintiff argues that circumstances have changed since the parties entered the settlement agreement because this Court imposed issue and evidence sanctions against Defendants on August 21, 2024. (Id. ¶ 22.) Plaintiff has a currently pending motion for summary judgment relying on these sanctions.

B.

Legal
Standard

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6; see *Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917.)

C.

Discussion

Defendants

argue that although the Court refused to approve the PAGA settlement, the parties still entered into a binding, enforceable agreement. Specifically, Defendants contend that the settlement agreement required the parties to negotiate a final agreement that would be approved by the Court, while Plaintiff maintains that the agreement is not binding because the Court did not approve it. All parties had signed the agreement, along with the PAGA addendum, by May 8, 2025. The Court denied Plaintiff's motion to approve the agreement on July 17, 2025.

The agreement provides that after entry

of judgment, the Court would retain jurisdiction over the parties to enforce the agreement. However, judgment was never entered in this matter, as the Court declined to enforce the agreement. Defendants point to section 6.3 of the agreement, which provided that Plaintiff and Defendants would expeditiously work together to modify the agreement should the Court not grant approval. But section 664.6 does not grant this Court authority to compel parties to reach certain settlement terms. (*Weddington Products, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797.) This Court's role is limited to enforcing binding settlement agreements. The Court did not approve the relevant agreement here, and Defendants have not set forth a basis for further intervention. Accordingly, Defendants' motion is denied.

D.

Conclusion

The Court denies the motion. The Court will reschedule the other pending motions.